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Agreement

# Residential Tenancy Agreement

Residential Tenancies Regulations 2019

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Scape Darling Square Operator Pty Ltd

Manh Dung Nguyen

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# Table of Contents


1 Right to occupy the premises
2 Copy of Agreement
3 Rent
4 Rent increases
5 Rent reductions
6 Payment of Council Rates, land tax, water and other charges
7 Possession of the premises
8 Tenant's right to quiet enjoyment
9 Use of the premises by Tenant
10 Landlord's general obligations for residential premises
11 Urgent repairs
12 Sale of the premises
13 Landlord's access to the premises
14 Publishing photographs or visual recordings
15 Fixtures, alterations, additions or renovations to the premises
16 Locks and security devices
17 Transfer of tenancy or sub-letting by Tenant
18 Change in details of landlord or landlord's agent
19 Copy of certain by-laws to be provided
20 Mitigation of loss
21 Rental bond
22 Smoke alarms
23 Swimming pools
24 Loose-Fill Asbestos Insulation
25 Combustible cladding
26 Significant health or safety risks
27 Electronic service of notices and other documents
28 Break fee for fixed term of not more than 3 years
29 Additional term
30 Additional term – pets

Signing page

DocuSign Envelope ID: DB56501E-5696-465A-90FA-76D49404DDCD

# Table of Contents

**Schedule 1 – Additional Terms**
**1 DEFINITIONS AND INTERPRETATION**
1.1 Definitions
1.2 Interpretations
**2 THE TENANT'S OBLIGATIONS**
2.1 Minors
2.2 Rent and Bond
2.3 Condition report
2.4 Shared Items
2.5 Care of the Residential Premises and Common Areas
2.6 Inspections and cleaning
2.7 Tenant's own belongings and equipment
2.8 Nuisance
2.9 Proper use of the Residential Premises and Common Areas
2.10 Other requirements
2.11 End of Tenancy Agreement
2.12 Keep the Property Management informed
**3 LANDLORD'S OBLIGATIONS**
**4 ADDITIONAL MATTERS**
4.1 Exclusive Possession
4.2 Transfer of tenancy or sub-letting by tenant
4.3 Surveillance equipment
4.4 Information and communication technology
4.5 Personal Information
4.6 Landlord not liable
4.7 Release
4.8 Right of entry
4.9 Works
4.10 Agreement with other residents
4.11 Alternative accommodation
4.12 Notice
4.13 Emergency
4.14 Damage and destruction of Residential Premises
4.15 Termination prior to Commencement Date
4.16 Breach
4.17 GST
**5 Twin-share room**
**6 Multi-bed apartment**
**Attachment 1**
**Premises Items and Shared Items**

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# Particulars:

This agreement is made on the day of: 25 September 2023 | 1:24 PM AEST

This agreement is made between the parties specified below:

| | | |
|---|---|---|
| **Item 1** | **Landlord** | Scape Darling Square Operator Pty Ltd<br>67 113 853 245<br>41 Darling Drive, Haymarket, NSW, 2000, Australia<br>+61 2 8099 2300<br><br>darlingsquare@scape.com.au |
| **Item 2** | **Tenant** | Manh Dung Nguyen<br>10/08/2000<br>41 Darling Drive, Haymarket<br>Unit 6.10.C<br>Sydney<br>Australia<br>2000<br>+61449529238<br>dungnguyen10082000@gmail.com |
| **Item 3** | **Landlord's agent** | Not applicable |
| **Item 4** | **Tenant's agent** | Not applicable |
| **Item 5** | **Residential premises** | The residential premises are: 01.06.10 C<br>41 Darling Drive, Haymarket, NSW, 2000, Australia<br>Room Type: King Single Bed, 5 Bed Apartment with Ensuite<br>The residential premises include those items referred to Attachment 1. |

**Item 6 Term**

The term of this agreement is the period starting on 23/01/2024 and ending on 14/07/2024

**Item 7 Rent**

The rent is $ 659.00 (inclusive of GST,utilities and data) payable in advance starting on 23/01/2024

**Note:** Under section 33 of the Residential Tenancies Act 2010, a landlord, or landlord's agent, must not require a tenant to pay more than 2 weeks rent in advance under this agreement.

The method by which the rent must be paid is:

**(a)** To Scape Darling Square Operator Pty Ltd
*at* 41 Darling Drive, Haymarket, NSW, 2000, Australia
*by direct debit,*
**Note:** *All rental bonds must be lodged with NSW Fair Trading. If the bond is paid to the landlord or another person, it must be deposited within 10 working days after it is paid using the Fair Trading approved form. If the bond is paid to the landlord's agent, it must be deposited within 10 working days after the end of the month in which it is paid.*

**Item 8 Rental Bond**

A rental bond of $ 2636.00must be paid by the tenant on signing this agreement. The amount of the rental bond must not be more than 4 weeks rent.

The tenant provided the rental bond amount to:

- ☑ the landlord or another person, or
- ☐ the landlord's agent, or
- ☐ NSW Fair Trading through Rental Bonds Online.

**Item 9 Important information**

**Maximum number of occupants**

No more than 1 persons may ordinarily live in the premises at any one time.

**Urgent repairs**

Nominated tradespeople for urgent repairs:
Electrical repairs: Scape, Telephone: +61 2 8099 2300
Plumbing repairs: Scape, Telephone: +61 2 8099 2300
Other repairs: Scape, Telephone: +61 2 8099 2300

## Water usage

Will the tenant be required to pay separately for water usage?

☐ **Yes** ☑ **No**

If yes, see clauses 6(c) and 6(d).

## Utilities

Is electricity supplied to the premises from an embedded network?

☐ **Yes** ☑ **No**

Is gas supplied to the premises from an embedded network?

☐ **Yes** ☑ **No**

For more information on consumer rights if electricity or gas is supplied from an embedded network contact NSW Fair Trading.

## Smoke alarms

Indicate whether the smoke alarms installed in the residential premises are hardwired or battery operated:

☑ Hardwired smoke alarm

☐ Battery operated smoke alarm

If the smoke alarms are battery operated, are the batters in the smoke alarms of a kind the tenant can replace? Not applicable

☐ **Yes** ☐ **No**

If yes, specify the type of battery that needs to be used if the battery in the smoke alarm needs to be replaced:

If the smoke alarms are hardwired, are the back-up batteries in the smoke alarms of a kind the tenant can replace?

☐ **Yes** ☑ **No**

If yes, specify the type of back-up battery that needs to be used if the back-up battery in the smoke alarm needs to be replaced: Not applicable

If the *Strata Management Act 2015* applies to the residential premises, is the owners corporation of the strata scheme responsible for the repair and replacement of smoke alarms in the residential premises? Not applicable

☐ **Yes** ☐ **No**

### Strata by-laws

Are there any strata or community scheme by-laws applicable to the residential premises?

☐ **Yes** ☑ **No**

If yes, see clauses 38 and 39.

### Giving notices and other documents electronically

Indicate below for each person whether the person provides express consent to any notice and any other document under section 223 of the *Residential Tenancies Act 2010* being given or served on them by email. The *Electronic Transactions Act 2000* applies to notices and other documents you send or receive electronically.

*[You should only consent to electronic service if you check your emails regularly. If there is more than one tenant on the agreement, all tenants should agree on a single email address for electronic service. This will help ensure co-tenants receive notices and other documents at the same time.]*

### Landlord

Does the landlord give express consent to the electronic service of notices and documents?

☑ **Yes** ☐ **No**

If yes, see clause 27.

Email: darlingsquare@scape.com.au

### Tenant

Does the tenant give express consent to the electronic service of notices and documents?

☑ **Yes** ☐ **No**

If yes, see clause 27.

Email: dungnguyen10082000@gmail.com

**Condition report**

A condition report relating to the condition of the premises must be completed by or on behalf of the landlord before or when this agreement is given to the tenant for signing.

**Tenancy laws**

The *Residential Tenancies Act 2010 and the Residential Tenancies Regulation 2019* apply to this agreement. Both the landlord and the tenant must comply with these laws.

For information about your rights and obligations as a landlord or tenant, contact NSW Fair Trading on 13 32 20 or www.fairtrading.nsw.gov.au

The parties agree as follows:

## 1 Right to occupy the premises

The landlord agrees that the tenant has the right to occupy the residential premises during the tenancy. The residential premises include the additional things (if any) noted under "**Residential premises**".

## 2 Copy of Agreement

The landlord agrees to give the tenant:

(a) a copy of this agreement before or when the tenant gives the signed copy of the agreement to the landlord or landlord's agent, and

(b) a copy of this agreement signed by both the landlord and the tenant as soon as is reasonably practicable.

## 3 Rent

(a) The tenant agrees:

(1) to pay rent on time, and

(2) to reimburse the landlord for the cost of replacing rent deposit books or rent cards lost by the tenant, and

(3) to reimburse the landlord for the amount of any fees paid by the landlord to a bank or other authorised deposit-taking institution as a result of funds of the tenant not being available for rent payment on the due date.

(b) The landlord agrees:

(1) to provide the tenant with at least one means to pay rent for which the tenant does not incur a cost (other than bank fees or other account fees usually payable for the tenant's transactions) and that is reasonably available to the tenant, and

(2) not to require the tenant to pay more than 2 weeks rent in advance or to pay rent for a period of the tenancy before the end of the previous period for which rent has been paid, and

(3) not to require the tenant to pay rent by a cheque or other negotiable instrument that is post-dated, and

(4) to accept payment of unpaid rent after the landlord has given a termination notice on the ground of failure to pay rent if the tenant has not vacated the residential premises, and

(5) not to use rent paid by the tenant for the purpose of any amount payable by the tenant other than rent, and

(6) to give a rent receipt to the tenant if rent is paid in person (other than by cheque) and to make a rent receipt available for collection by the tenant or to post it to the residential premises if rent is paid by cheque, and

(7) to make a rent receipt available for collection by the tenant or to post it to the residential premises or to send it by email to an email address specified in this agreement by the tenant for the service of documents of that kind if rent is paid by cheque, and

(8) to keep a record of rent paid under this agreement and to provide a written statement showing the rent record for a specified period within 7 days of a request by the tenant (unless the landlord has previously provided a statement for the same period).

**Note**. The landlord and tenant may, by agreement, change the manner in which rent is payable under this agreement.

## 4 Rent increases

(a) The landlord and the tenant agree that the rent cannot be increased after the end of the fixed term (if any) of this agreement or under this agreement if the agreement is for a fixed term of 2 years or more, unless the landlord gives not less than 60 days written notice of the increase to the tenant. The notice must specify the increased rent and the day from which it is payable.

**Note**. Section 42 of the Residential Tenancies Act 2010 sets out the circumstances in which rent may be increased during the fixed term of a residential tenancy agreement. An additional term for this purpose may be included in the agreement.

(b) The landlord and the tenant agree that the rent may not be increased after the end of the fixed term (if any) of this agreement more than once in any 12-month period.

(c) The landlord and the tenant:

(1) that the increased rent is payable from the day specified in the notice, and

(2) that the landlord may cancel or reduce the rent increase by a later notice that takes effect on the same day as the original notice, and

(3) that increased rent under this agreement is not payable unless the rent is increased in accordance with this agreement and the Residential Tenancies Act 2010 or by the Civil and Administrative Tribunal.

# 5 Rent reductions

(a) The landlord and the tenant agree that the rent abates if the residential premises:

(1) are destroyed, or become wholly or partly uninhabitable, otherwise than as a result of a breach of this agreement, or

(2) cease to be lawfully usable as a residence, or

(3) are compulsorily appropriated or acquired by an authority.

(b) The landlord and tenant may, at any time during this agreement, agree to reduce the rent payable.

# 6 Payment of Council Rates, land tax, water and other charges

(a) The landlord agrees to pay:

(1) rates, taxes or charges payable under any Act (other than charges payable by the tenant under this agreement), and

(2) the installation costs and charges for initial connection to the residential premises of an electricity, water, gas, bottled gas or oil supply service, and

(3) all charges for the supply of electricity, non-bottled gas or oil to the tenant at the residential premises that are not separately metered, and

**Note 1**. Clause 6.3 does not apply to premises located in an embedded network in certain circumstances in accordance with clauses 34 and 35 of the Residential Tenancies Regulation 2019.

**Note 2.** Clause 6.3 does not apply to social housing tenancy agreements in certain circumstances, in accordance with clause 36 of the Residential Tenancies Regulation 2019.

(4) the costs and charges for the supply or hire of gas bottles for the supply of bottled gas at the commencement of the tenancy, and

(5) all charges (other than water usage charges) in connection with a water supply service to separately metered residential premises, and

(6) all charges in connection with a water supply service to residential premises that are not separately metered, and

(7) all charges for the supply of sewerage services (other than for pump out septic services) or the supply or use of drainage services to the residential premises; and

(8) all service availability charges, however described, for the supply of non-bottled gas to the residential premises if the premises are separately metered but do not have any appliances, supplied by the landlord, for which gas is required and the tenant does not use gas supplied to the premises, and

(9) the costs and charges for repair, maintenance or other work carried out on the residential premises which is required to facilitate the proper installation or replacement of an electricity meter, in working order, including an advanced meter, if the meter installation is required by the retailer to replace an existing meter because the meter is faulty, testing indicates the meter may become faulty or the meter has reached the end of its life.

(b) The tenant agrees to pay:

(1) all charges for the supply of electricity or oil to the tenant at the residential premises if the premises are separately metered, and

(2) all charges for the supply of non-bottled gas to the tenant at the residential premises if the premises are separately metered, unless the premises do not have any appliances supplied by the landlord for which gas is required and the tenant does not use gas supplied to the premises, and

**Note**. Charges for the supply of gas in certain circumstances may also be payable by a tenant under a social housing agreement in accordance with clause 36 of the Residential Tenancies Regulation 2019.

(3) all charges for the supply of bottled gas to the tenant at the residential premises except for the costs and charges for the supply or hire of gas bottles at the start of the tenancy, and

(4) all charges for pumping out a septic system used for the residential premises, and

(5) any excess garbage charges relating to the tenant's use of the residential premises, and

(6) water usage charges, if the landlord has installed water efficiency measures referred to in clause 10 of the Residential Tenancies Regulation 2019 and the residential premises:

(A) are separately metered, or

(B) are not connected to a water supply service and water is delivered by vehicle.

**Note**: Separately metered is defined in the Residential Tenancies Act 2010

(c) The landlord agrees that the tenant is not required to pay water usage charges unless:

(1) the landlord gives the tenant a copy of the part of the water supply authority's bill setting out the charges, or other evidence of the cost of water used by the tenant, and

(2) the landlord gives the tenant at least 21 days to pay the charges, and

(3) the landlord requests payment of the charges by the tenant not later than 3 months after the issue of the bill for the charges by the water supply authority, and

(4) the residential premises have the following water efficiency measures:

(A) all internal cold water taps and single mixer taps for kitchen sinks or bathroom hand basins on the premises have a maximum flow rate of 9 litres per minute,

(B) on and from 23 March 2025, all toilets are dial flush toilets that have a minimum 3 star rating in accordance with the WELS scheme,

(C) all showerheads have a maximum flow rate of 9 litres per minute,

(D) at the commencement of the residential tenancy agreement and whenever any other water efficiency measures are installed, repaired or upgraded, the premises are checked and any leaking taps or toilets on the premises have been fixed.

(d) The landlord agrees to give the tenant the benefit of, or an amount equivalent to, any rebate received by the landlord for water usage charges payable or paid by the tenant.

## 7 Possession of the premises

(a) The landlord agrees:

(1) to make sure the residential premises are vacant so the tenant can move in on the date agreed, and

(2) to take all reasonable steps to ensure that, at the time of signing this agreement, there is no legal reason why the premises cannot be used as a residence for the term of this agreement.

## 8 Tenant's right to quiet enjoyment

(a) The landlord agrees:

(1) that the tenant will have quiet enjoyment of the residential premises without interruption by the landlord or any person claiming by, through or under the landlord or having superior title to that of the landlord (such as a head landlord), and

(2) that the landlord or the landlord's agent will not interfere with, or cause or permit any interference with, the reasonable peace, comfort or privacy of the tenant in using the residential premises, and

(3) that the landlord or the landlord's agent will take all reasonable steps to ensure that the landlord's other neighbouring tenants do not interfere with the reasonable peace, comfort or privacy of the tenant in using the residential premises.

## 9 Use of the premises by Tenant

(a) The tenant agrees:

(1) not to use the residential premises, or cause or permit the premises to be used, for any illegal purpose, and

(2) not to cause or permit a nuisance, and

(3) not to interfere, or cause or permit interference, with the reasonable peace, comfort or privacy of neighbours, and

(4) not to intentionally or negligently cause or permit any damage to the residential premises, and

(5) not to cause or permit more people to reside in the residential premises than is permitted by this agreement.

(b) The tenant agrees:

(1) to keep the residential premises reasonably clean, and

(2) to notify the landlord as soon as practicable of any damage to the residential premises,

(3) that the tenant is responsible to the landlord for any act or omission by a person who is lawfully on the residential premises if the person is only permitted on the premises with the tenant's consent and the act or omission would be in breach of this agreement if done or omitted by the tenant, and

(4) that it is the tenant's responsibility to replace light globes on the residential premises.

(c) The tenant agrees, when this agreement ends and before giving vacant possession of the premises to the landlord:

(1) to remove all the tenant's goods from the residential premises, and

(2) to leave the residential premises as nearly as possible in the same condition, fair wear and tear excepted, as at the commencement of the tenancy, and

(3) to leave the residential premises reasonably clean, having regard to their condition at the commencement of the tenancy, and

(4) to remove or arrange for the removal of all rubbish from the residential premises, and

(5) to make sure that all light fittings on the premises have working globes, and

(6) to return to the landlord all keys, and other opening devices or similar devices, provided by the landlord.

**Note**. Under section 54 of the Residential Tenancies Act 2010, the vicarious liability of a tenant for damage to residential premises caused by another person is not imposed on a tenant who is the victim of a domestic violence offence, or a co-tenant who is not a relevant domestic violence offender, if the damage occurred during the commission of a domestic violence offence (within the meaning of that Act).

## 10 Landlord's general obligations for residential premises

(a) The landlord agrees:

(1) to make sure that the residential premises are reasonably clean and fit to live in, and

(2) to make sure that all light fittings on the residential premises have working light globes on the commencement of the tenancy, and

(3) to keep the residential premises in a reasonable state of repair, considering the age of, the rent paid for and the prospective life of the premises, and

(4) not to interfere with the supply of gas, electricity, water, telecommunications or other services to the residential premises (unless the interference is necessary to avoid danger to any person or enable maintenance or repairs to be carried out), and

(5) not to hinder a tradesperson's entry to the residential premises when the tradesperson is carrying out maintenance or repairs necessary to avoid health or safety risks to any person, or to avoid a risk that the supply of gas, electricity, water, telecommunications or other services to the residential premises may be disconnected, and

(6) to comply with all statutory obligations relating to the health or safety of the residential premises, and

(7) that a tenant who is the victim of a domestic violence offence or a co-tenant who is under the same agreement as the victim of the domestic violence offence but is not a relevant domestic violence offender is not responsible to the landlord for any act or omission by a co-tenant that is a breach of this agreement if the act or omission constitutes or resulted in damage to the premises and occurred during the commission of a domestic violence offence.

## 11 Urgent repairs

(a) The landlord agrees to pay the tenant, within 14 days after receiving written notice from the tenant, any reasonable costs (not exceeding $1,000) that the tenant has incurred for making urgent repairs to the residential premises (of the type set out below) so long as:

(1) the damage was not caused as a result of a breach of this agreement by the tenant, and

(2) the tenant gives or makes a reasonable attempt to give the landlord notice of the damage, and

(3) the tenant gives the landlord a reasonable opportunity to make the repairs, and

(4) the tenant makes a reasonable attempt to have any appropriate tradesperson named in this agreement make the repairs, and

(5) the repairs are carried out, where appropriate, by licensed or properly qualified persons, and

(6) the tenant, as soon as possible, gives or tries to give the landlord written details of the repairs, including the cost and the receipts for anything the tenant pays for.

**Note**. The type of repairs that are urgent repairs are defined in the Residential Tenancies Act 2010 and are defined as follows:

(A) a burst water service,

(B) an appliance, fitting or fixture that uses water or is used to supply water that is broken or not functioning properly, so that a substantial amount of water is wasted,

(C) a blocked or broken lavatory system,

(D) a serious roof leak,

(E) a gas leak,

(F) a dangerous electrical fault,

(G) flooding or serious flood damage,

(H) serious storm or fire damage,

(I) a failure or breakdown of the gas, electricity or water supply to the premises,

(J) a failure or breakdown of any essential service on the residential premises for hot water, cooking, heating, cooling or laundering,

(K) any fault or damage that causes the premises to be unsafe or insecure.

## 12 Sale of the premises

(a) The landlord agrees:

(1) to give the tenant written notice that the landlord intends to sell the residential premises, at least 14 days before the premises are made available for inspection by potential purchasers, and

(2) to make all reasonable efforts to agree with the tenant as to the days and times when the residential premises are to be available for inspection by potential purchasers.

(b) The tenant agrees not to unreasonably refuse to agree to days and times when the residential premises are to be available for inspection by potential purchasers.

(c) The landlord and tenant agree:

(1) that the tenant is not required to agree to the residential premises being available for inspection more than twice in a period of a week, and

(2) that, if they fail to agree, the landlord may show the residential premises to potential purchasers not more than twice in any period of a week and must give the tenant at least 48 hours' notice each time.

## 13 Landlord's access to the premises

(a) The landlord agrees that the landlord, the landlord's agent or any person authorised in writing by the landlord, during the currency of this agreement, may only enter the residential premises in the following circumstances:

(1) in an emergency (including entry for the purpose of carrying out urgent repairs),

(2) if the Civil and Administrative Tribunal so orders,

(3) if there is good reason for the landlord to believe the premises are abandoned,

(4) if there is good reason for serious concern about the health of the tenant or any other person on the residential premises and a reasonable attempt has been made to obtain consent to the entry,

(5) to inspect the premises, if the tenant is given at least 7 days written notice (no more than 4 inspections are allowed in any period of 12 months),

(6) to carry out, or assess the need for, necessary repairs, if the tenant is given at least 2 days notice each time,

(7) to carry out, or assess the need for, work relating to statutory health and safety obligations relating to the residential premises, if the tenant is given at least 2 days' notice each time,

(8) to show the premises to prospective tenants on a reasonable number of occasions if the tenant is given reasonable notice on each occasion (this is only allowed during the last 14 days of the agreement),

(9) to value the property, if the tenant is given 7 days notice (not more than one valuation is allowed in any period of 12 months),

(10) to take photographs, or make visual recordings, of the inside of the premises in order to advertise the premises for sale or lease, if the tenant is given reasonable notice and reasonable opportunity to move any of their possessions that can reasonably be moved out of the frame of the photograph or the scope of the recording (this is only allowed once in a 28 day period before marketing of the premises starts for sale or lease or the termination of this agreement),

(11) if the tenant agrees.

(b) The landlord agrees that a person who enters the residential premises under clause 13(a)(5), 13(a)(6), 13(a)(7), 13(a)(8) or 13(a)(9) of this agreement:

(1) must not enter the premises on a Sunday or a public holiday, unless the tenant agrees, and

(2) may enter the premises only between the hours of 8.00 a.m. and 8.00 p.m., unless the tenant agrees to another time, and

(3) must not stay on the residential premises longer than is necessary to achieve the purpose of the entry to the premises, and

(4) must, if practicable, notify the tenant of the proposed day and time of entry.

(c) The landlord agrees that, except in an emergency, (including to carry out urgent repairs), a person other than the landlord or the landlord's agent must produce to the tenant the landlord's or the landlord's agent's written permission to enter the residential premises.

(d) The tenant agrees to give access to the residential premises to the landlord, the landlord's agent or any person, if they are exercising a right to enter the residential premises in accordance with this agreement.

## 14 Publishing photographs or visual recordings

(a) The landlord agrees that the landlord or the landlord's agent must not publish any photographs taken or visual recordings made of the inside of the residential premises in which the tenant's possessions are visible unless they first obtain written consent from the tenant.

Note. See section 55A of the Residential Tenancies Act 2010 for when a photograph or visual recording is published.

(b) The tenant agrees not to unreasonably withhold consent. If the tenant is in circumstances of domestic violence within the meaning of section 105B of the Residential Tenancies Act 2010, it is not unreasonable for the tenant to withhold consent.

## 15 Fixtures, alterations, additions or renovations to the premises

(a) The tenant agrees:

(1) not to install any fixture or renovate, alter or add to the residential premises without the landlord's written permission, and

(2) that certain kinds of fixtures or alterations, additions or renovations that are of a minor nature specified by clause 22(2) of the Residential Tenancies Regulation 2019 may only be carried out by a person appropriately qualified to carry out those alterations unless the landlord gives consent, and

(3) to pay the cost of a fixture, installed by or on behalf of the tenant, or any renovation, alteration or addition to the residential premises, unless the landlord otherwise agrees, and

(4) not to remove, without the landlord's permission, any fixture attached by the tenant that was paid for by the landlord or for which the landlord gave the tenant a benefit equivalent to the cost of the fixture, and

(5) to notify the landlord of any damage caused by removing any fixture attached by the tenant, and

(6) to repair any damage caused by removing the fixture or compensate the landlord for the cost of repair.

(b) The landlord agrees not to unreasonably refuse permission for the installation of a fixture by the tenant or to a minor alteration, addition or renovation by the tenant.

**Note**. The Residential Tenancies Regulation 2019 provides a list of the kinds of fixtures or alterations, additions or renovations of a minor nature to which it would be unreasonable for a landlord to withhold consent and which of those fixtures, or alterations, additions or renovations the landlord may give consent to on the condition that the fixture or alteration, addition or renovation is carried out by an appropriately qualified person.

# 16 Locks and security devices

(a) The landlord agrees:

(1) to provide and maintain locks or other security devices necessary to keep the residential premises reasonably secure, and

(2) to give each tenant under this agreement a copy of the key or opening device or information to open any lock or security device for the residential premises or common property to which the tenant is entitled to have access, and

(3) not to charge the tenant for the cost of providing the copies except to recover the cost of replacement or additional copies, and

(4) not to alter, remove or add any lock or other security device without reasonable excuse (which includes an emergency, an order of the Civil and Administrative Tribunal, termination of a co-tenancy or an apprehended violence order prohibiting a tenant or occupant from having access) or unless the tenant agrees, and

(5) to give each tenant under this agreement a copy of any key or other opening device or information to open any lock or security device that the landlord changes as soon as practicable (and no later than 7 days) after the change.

(b) The tenant agrees:

(1) not to alter, remove or add any lock or other security device without reasonable excuse (which includes an emergency, an order of the Civil and Administrative Tribunal, termination of a co-tenancy or an apprehended violence order prohibiting a tenant or occupant from having access) or unless the landlord agrees, and

(2) to give the landlord a copy of the key or opening device or information to open any lock or security device that the tenant changes within 7 days of the change.

(c) A copy of a changed key or other opening device need not be given to the other party if the other party agrees not to be given a copy or the Civil and Administrative Tribunal authorises a copy not to be given or the other party is prohibited from access to the residential premises by an apprehended violence order.

# 17 Transfer of tenancy or sub-letting by Tenant

(a) The landlord and tenant agree that:

(1) the tenant may, with the landlord's written permission, transfer the tenant's tenancy under this agreement or sub-let the residential premises, and

(2) the landlord may refuse permission (whether or not it is reasonable to do so) to the transfer of the whole of the tenancy or sub-letting the whole of the residential premises, and

(3) the landlord must not unreasonably refuse permission to a transfer of part of a tenancy or a sub-letting of part of the residential premises, and

(4) without limiting clause 17(a)(3), the landlord may refuse permission to a transfer of part of a tenancy or to sub-letting part of the residential premises if the number of occupants would be more than is permitted under this agreement or any proposed tenant or sub-tenant is listed on a residential tenancy database or it would result in overcrowding of the residential premises.

**Note**. Clauses 17(a)(3) and 17(a)(4) do not apply to social tenancy housing agreements.

(b) The landlord agrees not to charge for giving permission other than for the landlord's reasonable expenses in giving permission.

## 18 Change in details of landlord or landlord's agent

(a) The landlord agrees:

(1) if the name and telephone number or contact details of the landlord change, to give the tenant notice in writing of the change within 14 days, and

(2) if the address of the landlord changes (and the landlord does not have an agent), to give the tenant notice in writing of the change within 14 days, and

(3) if the name, telephone number or business address of the landlord's agent changes or the landlord appoints an agent, to give the tenant notice in writing of the change or the agent's name, telephone number and business address, as appropriate, within 14 days, and

(4) if the landlord or landlord's agent is a corporation and the name or business address of the corporation changes, to give the tenant notice in writing of the change within 14 days.

## 19 Copy of certain by-laws to be provided

~~(a) The landlord agrees to give to the tenant, before the tenant enters into this agreement, a copy of the by-laws applying to the residential premises if they are premises under the *Strata Schemes Management Act 2015*.~~

~~(b) The landlord agrees to give to the tenant, within 7 days of entering into this agreement, a copy of the by-laws applying to the residential premises if they are premises under the *Strata Schemes Development Act 2015*, the *Community Land Development Act 1989* or the *Community Land Management Act 1989*.~~

## 20 Mitigation of loss

The rules of law relating to mitigation of loss or damage on breach of a contract apply to a breach of this agreement. (For example, if the tenant breaches this agreement the landlord will not be able to claim damages for loss which could have been avoided by reasonable effort by the landlord.)

## 21 Rental bond

The landlord agrees that where the landlord or the landlord's agent applies to the Rental Bond Board or the Civil and Administrative Tribunal for payment of the whole or part of the rental bond to the landlord, then the landlord or the landlord's agent will provide the tenant with:

(a) details of the amount claimed, and

(b) copies of any quotations, accounts and receipts that are relevant to the claim, and

(c) a copy of a completed condition report about the residential premises at the end of the residential tenancy agreement.

# 22 Smoke alarms

(a) The landlord agrees to:

(1) ensure that smoke alarms are installed in accordance with the Environmental Planning and Assessment Act 1979 if that Act requires them to be installed in the premises and are functioning in accordance with the regulations under that Act, and

(2) conduct an annual check of all smoke alarms installed on the residential premises to ensure that the smoke alarms are functioning, and

(3) install or replace, or engage a person to install or replace, all removable batteries in all smoke alarms installed on the residential premises annually, except for smoke alarms that have a removable lithium battery, and

(4) install or replace, or engage a person to install or replace, a removable lithium battery in a smoke alarm in the period specified by the manufacturer of the smoke alarm, and

(5) engage an authorised electrician to repair or replace a hardwired smoke alarm, and

(6) repair or replace a smoke alarm within 2 business days of becoming aware that the smoke alarm is not working unless the tenant notifies the landlord that the tenant will carry out the repair to the smoke alarm and the tenant carries out the repair, and

(7) reimburse the tenant for the costs of a repair or replacement of a smoke alarm in accordance with clause 18 of the Residential Tenancies Regulation 2019, that the tenant is allowed to carry out.

**Note 1.** Under section 64A of the Residential Tenancies Act 2010, repairs to a smoke alarm includes maintenance of a smoke alarm in working order by installing or replacing a battery in the smoke alarm.

**Note 2.** Clauses 22(a)(2) to 22(a)(7) do not apply to a landlord of premises that comprise or include a lot in a strata scheme (within the meaning of the Strata Schemes Management Act 2015) if the owners corporation is responsible for the repair and replacement of smoke alarms in the residential premises.

**Note 3**. A tenant who intends to carry out a repair to a smoke alarm may do so only in the circumstances prescribed for a tenant in clause 15 of the Residential Tenancies Regulation 2019.

(b) The tenant agrees:

(1) to notify the landlord if a repair or a replacement of a smoke alarm is required, including replacing a battery in the smoke alarm, and

(2) that the tenant may only replace a battery in a battery-operated smoke alarm, or a back-up battery in a hardwired smoke alarm, if the smoke alarm has a removable battery or a removable back-up battery, and

(3) to give the landlord written notice, as soon as practicable if the tenant will carry out and has carried out a repair or replacement, or engages a person to carry out a repair or replacement, in accordance with clauses 15–17 of the Residential Tenancies Regulation 2019.

**Note**. Clauses 22(b)(2) and 22(b)(3) do not apply to tenants under social housing tenancy agreements or tenants of premises that comprise or include a lot in a strata scheme (within the meaning of the Strata Schemes Management Act 2015) if the owners corporation is responsible for the repair and replacement of smoke alarms in the residential premises.

(c) The landlord and the tenant each agree not to remove or interfere with the operation of a smoke alarm installed on the residential premises unless they have a reasonable excuse to do so.

**Note**. The regulations made under the Environmental Planning and Assessment Act 1979 provide that it is an offence to remove or interfere with the operation of a smoke alarm or a heat alarm in particular circumstances.

## 23 Swimming pools

~~(a) The landlord agrees to ensure that the requirements of the Swimming Pools Act 1992 have been complied with in respect of the swimming pool on the residential premises.~~

~~(b) The landlord agrees to ensure that at the time that this residential tenancy agreement is entered into~~

~~(1) the swimming pool on the residential premises is registered under the Swimming Pools Act 1992 and has a valid certificate of compliance under that Act or a relevant occupation certificate within the meaning of that Act, and~~

~~(2) a copy of that valid certificate of compliance or relevant occupation certificate is provided to the tenant.~~

~~**Note**. A swimming pool certificate of compliance is valid for 3 years from its date of issue.~~

## 24 Loose-Fill Asbestos Insulation

The landlord agrees:

(a) if, at the time that this residential tenancy agreement is entered into, the premises have been and remain listed on the LFAI Register, the tenant has been advised in writing by the landlord that the premises are listed on that Register, or

(b) if, during the tenancy, the premises become listed on the LFAI Register, to advise the tenant in writing, within 14 days of the premises being listed on the Register, that the premises are listed on the Register.

## 25 Combustible cladding

The landlord agrees that if, during the tenancy, the landlord becomes aware of any of the following facts, the landlord will advise the tenant in writing within 14 days of becoming aware of the fact:

(a) that the residential premises are part of a building in relation to which a notice of intention to issue a fire safety order, or a fire safety order, has been issued requiring rectification of the building regarding external combustible cladding,

(b) that the residential premises are part of a building in relation to which a notice of intention to issue a building product rectification order, or a building product rectification order, has been issued requiring rectification of the building regarding external combustible cladding,

(c) that the residential premises are part of a building where a development application or complying development certificate application has been lodged for rectification of the building regarding external combustible cladding.

## 26 Significant health or safety risks

The landlord agrees that if, during the tenancy, the landlord becomes aware that the premises are subject to a significant health or safety risk, the landlord will advise the tenant in writing, within 14 days of becoming aware, that the premises are subject to the significant health or safety risk and the nature of the risk.

## 27 Electronic service of notices and other documents

The landlord and the tenant agree:

(a) to only serve any notices and any other documents, authorised or required by the Residential Tenancies Act 2010 or the regulations or this agreement, on the other party by email if the other party has provided express consent, either as part of this agreement or otherwise, that a specified email address is to be used for the purpose of serving notices and other documents, and

(b) to notify the other party in writing within 7 days if the email address specified for electronic service of notices and other documents changes, and

(c) that they may withdraw their consent to the electronic service of notices and other documents at any time, by notifying the other party in writing, and

(d) if a notice is given withdrawing consent to electronic service of notices and other documents, following the giving of such notice, no further notices or other documents are to be served by email.

## 28 Break fee for fixed term of not more than 3 years

(a) The tenant agrees that, if the tenant ends the residential tenancy agreement before the end of the fixed term of the agreement, the tenant must pay a break fee of the following amount if the fixed term is not more than 3 years:

(1) 4 weeks rent if less than 25% of the fixed term has expired,

(2) 3 weeks rent if 25% or more but less than 50% of the fixed term has expired,

(3) 2 weeks rent if 50% or more but less than 75% of the fixed term has expired,

(4) 1 week's rent if 75% or more of the fixed term has expired.

This clause does not apply if the tenant terminates a fixed term residential tenancy agreement for a fixed term of more than 3 years or if the tenant terminates a residential tenancy agreement early for a reason that is permitted under the Residential Tenancies Act 2010.

**Note**. Permitted reasons for early termination include destruction of residential premises, breach of the agreement by the landlord and an offer of social housing or a place in an aged care facility, and being in circumstances of domestic violence. Section 107 of the Residential Tenancies Act 2010 regulates the rights of the landlord and tenant under this clause.

(b) The landlord agrees that the compensation payable by the tenant for ending the residential tenancy agreement before the end of the fixed term of not more than 3 years is limited to the amount specified in clause 51 and any occupation fee payable under the Residential Tenancies Act 2010 for goods left on the residential premises.

**Note.** Section 107 of the *Residential Tenancies Act 2010* also regulates the rights of landlords and tenants for a residential tenancy agreement with a fixed term of more than 3 years.

## 29 Additional terms

Additional terms are specified in Schedule 1 to this agreement.

## 30 Additional term – pets

(a) The landlord agrees that the tenant may keep the following animals on the residential premises: N/A

(b) The tenant agrees:

(1) to supervise and keep the animal within the premises, and

(2) to ensure that the animal does not cause a nuisance, or breach the reasonable peace, comfort or privacy of neighbours, and

(3) to ensure that the animal is registered and micro-chipped if required under law, and

(4) to comply with any council requirements.

(c) The tenant agrees to have the carpet professionally cleaned or to have the residential premises fumigated if the cleaning or fumigation is required because animals have been kept on the residential premises during the tenancy.

**Notes.**

1. **Definitions**

In this agreement:

| Term | Meaning |
|---|---|
| **landlord** | the person who grants the right to occupy residential premises under this agreement, and includes a successor in title to the residential premises whose interest is subject to that of the tenant. |
| **landlord's agent** | a person who acts as the agent of the landlord and who (whether or not the person carries on any other business) carries on business as an agent for:<br>1 the letting of residential premises, or<br>2 the collection of rents payable for any tenancy of residential premises. |

| | |
|---|---|
| **LFAI Register** | The register of residential premises that contain or have contained loose-fill asbestos insulation that is required to be maintained under Division 1A of Part 8 of the Home Building Act 1989. |
| **rental bond** | money paid by the tenant as security to carry out this agreement. |
| **residential premises** | any premises or part of premises (including any land occupied with the premises) used or intended to be used as a place of residence. |
| **tenancy** | the right to occupy residential premises under this agreement. |
| **tenant** | the person who has the right to occupy residential premises under this agreement, and includes the person to whom such a right passes by transfer or operation of the law and a sub-tenant of the tenant. |

2. **Continuation of tenancy (if fixed term agreement)**

Once any fixed term of this agreement ends, the agreement continues in force on the same terms as a periodic agreement unless the agreement is terminated by the landlord or the tenant in accordance with the Residential Tenancies Act 2010 (see notes 3 and 4). Clause 4(a) of this agreement provides for rent to be able to be increased if the agreement continues in force.

3. **Ending a fixed term agreement**

If this agreement is a fixed term agreement it may be ended by the landlord or the tenant by giving written notice of termination. The notice may be given at any time up until the end of the fixed term but cannot take effect until the term ends. The landlord must give at least 30 days' notice and the tenant must give at least 14 days' notice.

4. **Ending a periodic agreement**

If this agreement is a periodic agreement it may be ended by the landlord or the tenant by giving written notice of termination. The notice may be given at any time. The landlord must give at least 90 days' notice and the tenant must give at least 21 days' notice.

5. **Other grounds for ending agreement**

The Residential Tenancies Act 2010 also authorises the landlord and the tenant to end this agreement on other grounds. The grounds for the landlord ending the agreement include sale of the residential premises requiring vacant possession, breach of this agreement by the tenant, due to hardship or if the agreement is frustrated because the premises are destroyed, become wholly or partly uninhabitable or cease to be lawfully usable as a residence or are appropriated or acquired by any authority by compulsory process.

The grounds for the tenant include breach by the landlord of information disclosure provisions under section 26 of the Act (not revealed when this agreement was entered into), breach of this agreement by the landlord, due to hardship or if the agreement is frustrated because the premises are destroyed, become wholly or partly uninhabitable or cease to be lawfully usable as a residence or are appropriated or acquired by any authority by compulsory process.

For more information refer to that Act or contact NSW Fair Trading on 13 32 20.

6. **Warning**

It is an offence for any person to obtain possession of the residential premises without an order of the NSW Civil and Administrative Tribunal if the tenant does not willingly move out. A court can order fines and compensation to be paid for such an offence.

# Signing Page

## Executed as an agreement

### Landlord/agent

Signed by

sign here►

Landlord/agent

print name Paul Gray

In the presence of

sign here►

Witness

print name

The landlord acknowledges that, at or before the time of signing this residential tenancy agreement, the landlord has read and understood the contents of an information statement published by NSW Fair Trading that sets out the landlord's rights and obligations.

Signature of landlord

Date: 25 September 2023 | 1:24 PM AEST

### Tenant

Signed by

sign here► DocuSigned by: 80ACA3F4B52944B...

Tenant

print name Manh Dung Nguyen

In the presence of

sign here►

Witness

print name

### Tenant

Signed by

sign here►

Tenant

print name

In the presence of

sign here►

Witness

print name

The tenant acknowledges that, at or before the time of signing this residential tenancy agreement, the tenant was given a copy of an information statement published by NSW Fair Trading.

Signature of tenant/s

Date:

25 September 2023 | 1:24 PM AEST

For information about your rights and obligations as a landlord or tenant, contact:

(a) NSW Fair Trading on 13 32 20 or www.fairtrading.nsw.gov.au, or

(b) Law Access NSW on 1300 888 529 or www.lawaccess.nsw.gov.au, or

(c) your local Tenants Advice and Advocacy Service at www.tenants.org.au.

# Schedule 1 – Additional Terms

This Schedule 1 details additional terms to the Tenancy Agreement made between the Landlord and the Tenant.

## 1 DEFINITIONS AND INTERPRETATION

### 1.1 Definitions

With respect to Schedule 1 of the Tenancy Agreement, the following terms shall have the following meanings:

**Act** means the Residential Tenancies Act 2010 (NSW);

**Additional Terms** means the additional terms as set out in this Schedule 1 and forming part of the Tenancy Agreement;

**Apartment Common** Areas means all areas in a multi-bed apartment for shared use by the occupiers of the multi-bed apartment;

**Bond** means the amount payable and manner of payment specified in item 8 in the Standard Terms;

**Check-In Date** means the date on which the Tenant physically checks-in to the Residential Premises, which may be different from the Start Date;

**Common Areas** means all areas which are provided within the Location for shared use by the occupiers of the Location;

**End Date** means the date on which the Tenancy Agreement expires and the date on which the Tenant must vacate the Residential Premises, as specified in item 6 in the Standard Terms;

**Guidelines** means all guidelines of the Landlord issued from time to time which may impact upon the Tenant's use and occupation of the Location including but not limited to fire rules, health and safety policies, the resident rules and any other house rules, copies of which are provided at the Location and may be made available on request;

**Location** means the accommodation facility at the address at which the Residential Premises is located, as specified in item 5 in the Standard Terms;

**Personal Information** has the meaning given by the Privacy Act;

**Premises Items** means the furniture and contents in the Residential Premises as specified in Attachment 1, Part A;

**Privacy Act** means the Privacy Act 1988 (Cth) including the privacy principles applicable to the private sector (being the Australian Privacy Principles);

**Property Manager** means the person appointed by the Landlord to act as property manager;

**Property Management** means the Property Manager, and any such other senior member of staff as may be designated as such by the Landlord from time to time;

**Rent** means the amount payable and manner of payment specified in clause 3 in the Standard Terms;

**Residential Premises** means the residential premises specified in item 5 in the Standard Terms, or any other alternative accommodation provided to the Tenant by the Landlord pursuant to clause 4.11 in the Additional Terms from time to time;

**Shared Items** means those items detailed in Attachment 1 and any other items within the Common Areas provided for use by the occupiers of the Location, such items which may be amended by the Landlord from time to time; and

**Standard Terms** means the standard terms forming part of the Tenancy Agreement;

**Start Date** means the commencement of the Term from which the Tenant is entitled to start occupying the Residential Premises, as specified in item 6 in the Standard Terms;

**Tenancy Agreement** means this residential tenancy agreement including these Additional Terms; and

**Term** means the period from the Start Date to the End Date inclusive as specified in item 6 in the Standard Terms.

### 1.2 Interpretations

Any obligation on the part of the Tenant shall where appropriate include a further obligation to ensure the Tenant's visitors comply with it.

## 2 THE TENANT'S OBLIGATIONS

### 2.1 Minors

If, at the time of entering into this Tenancy Agreement, the Tenant is under the age of 18 years:

(a) the Tenant must give to the Landlord a guarantee from a person over the age of 18 years in favour of the Landlord to secure performance of the Tenant's obligations under this Tenancy Agreement; and

(b) this Tenancy Agreement only becomes valid and binding on the Landlord if the Landlord has received the signed guarantee in accordance with clause 2.1(a) in the Additional Terms.

### 2.2 Rent and Bond

(a) The Tenant must:

(1) pay the Rent in the manner described in clause 3 in the Standard Terms without any deduction or set-off;

(2) pay the Bond in the manner described in item 8 in the Standard Terms; and

(3) comply with all legislation and the Guidelines.

(b) Where the Tenant fails to pay rent in accordance with the Tenancy Agreement, without prejudice to any course of action by the Landlord and subject to the Act, the breach may be referred by Property Management to the Landlord and may be dealt with in accordance with the Guidelines.

### 2.3 Condition report

Subject to the Act, the Tenant:

(a) must mark a copy of the condition report to show any parts the Tenant disagrees with and sign and return the copy to the Property Management within 7 days of the Check-In Date;

(b) accepts the Residential Premises as being in good and habitable repair and condition and fit for the purposes for which they are let and/or intended to be used if the Tenant does not inform the Property Management in writing of any defects within 7 days of the Check-In Date, in accordance with clause 2.3(a) in the Additional Terms; and

(c) accepts the Premises Items are present in the Residential Premises, if the Tenant does not inform the Property Management in writing that Premises Items are missing within 7 days of the Check-In Date, in accordance with clause 2.3(a) in the Additional Terms.

## 2.4 Shared Items

(a) The Tenant acknowledges and agrees that the Shared Items may vary from time to time during the Term.

(b) This Tenancy Agreement will continue in full force and effect and the Tenant will have no claim against the Landlord as a result of the condition or removal of any Shared Items.

## 2.5 Care of the Residential Premises and Common Areas

The Tenant agrees to:

(a) maintain the Residential Premises and, with the other residents of the Location, the Common Areas in at least as good repair, decorative order and clean condition as they are in on the Check-In Date (as determined in accordance with clause 2.3 in the Additional Terms);

(b) maintain the Premises Items and, with the other residents of the Location, the Shared Items in at least as good repair and condition as they are in on the Check-In Date (as determined in accordance with clause 2.3 in the Additional Terms) except for fair wear and tear;

(c) not remove any of the Premises Items from the Residential Premises or the Shared Items from the Common Areas;

(d) not install or remove any fixture or renovate or alter the Residential Premises or Common Areas without the Landlord's prior written approval;

(e) not litter or obstruct the use of the Common Areas;

(f) pay to the Landlord the reasonable cost of repairing any damage to the Residential Premises and/or replacing any of the Premises Items as often as such damage occurs; and

(g) pay to the Landlord the reasonable cost of repairing any damage to the Common Areas and/or replacing any of the Shared Items, or a reasonable percentage of such cost if damage is caused by the Tenant alone or in conjunction with other residents, but excluding fair wear and tear.

## 2.6 Inspections and cleaning

(a) The Tenant agrees to allow the Property Manager (or its designated agents) access to the Residential Premises to conduct inspections of the Residential Premises as permitted under the Act, and maintenance as required under clause 3 in the Additional Terms.

(b) The Tenant agrees to allow the Property Manager (or its designated agents) to take photos of the Residential Premises during inspections for the Property Manager's records.

(c) If the Property Manager deems the Residential Premises unsanitary, the Property Manager may issue a notice to the Tenant requiring the tenant to:

(1) remedy the situation within the timeframe stated in the notice (or as otherwise stipulated in the Act); or

(2) cover the reasonable costs of the Property Manager arranging for the Residential Premises to be cleaned.

(d) If the Property Manager deems that the Tenant has failed to satisfactorily comply with clause 2.6(c) in the Additional Terms, the failure may result in the Landlord:

(1) issuing a notice of breach of agreement in accordance with the Act; or

(2) remedying the situation at the Tenant's cost.

## 2.7 Tenant's own belongings and equipment

(a) The Tenant agrees to:

(1) only keep or use items which are the sort of item normally kept by residents in properties of this type in the city of the Location (each a Qualifying Item), not including any illegal or illicit substances; and

(2) keep any such Qualifying Item in a safe condition, use it in a safe and proper manner and (if electrical) ensure that at all times it has a valid safety certificate issued by a qualified electrician.

(b) The Tenant acknowledges and agrees that the Landlord is not liable in respect of any loss, damage or theft of any Qualifying Item and it is the Tenant's responsibility to take out adequate insurance for all Qualifying Items.

## 2.8 Nuisance

(a) The Tenant agrees to and ensure that its guests agree to:

(1) not cause any excessive or unnecessary noise anywhere in the Location;

(2) not cause any noise in the Residential Premises which is audible outside of the Residential Premises;

(3) not cause any other occupier of the Location or neighbouring property any disturbance, distress, annoyance, inconvenience or damage to their property;

(4) not keep or use anywhere in the Location drugs or other items of which the possession or use is prohibited by statute;

(5) not keep or use any firearms, offensive weapons, explosives, candles or flammable materials;

(6) not remove, relocate, interfere or tamper with any firefighting equipment, smoke alarms or any other safety equipment, prop open any fire doors or disengage door closure mechanisms;

(7) not remove, relocate, interfere or tamper with any air-conditioning systems, heating systems, blinds, plumbing, electrical fittings or other equipment or services at the Location;

(8) in addition to any repercussions under the Guidelines, pay on demand any charges from the relevant fire authority if he/she sets off a fire alarm without due cause (even if accidentally) or removes, interferes with the operation of or otherwise tampers with any firefighting equipment or any other safety equipment;

(9) not smoke, or permit any smoking, within the Residential Premises or the Location; and

(10) not keep any animals (including pets, reptiles or birds) at the Residential Premises without the Landlord's prior written consent, which consent may be withheld in the Landlord's sole discretion.

(b) If the Tenant fails to comply with clause 2.8(a)(6) in the Additional Terms, the failure will be referred to the Property Manager and may result in the Landlord issuing a notice of breach of agreement in accordance with the Act.

## 2.9 Proper use of the Residential Premises and Common Areas

The Tenant agrees to:

(a) use the Residential Premises for residential purposes only;

(b) subject to clause 5 in the Additional Terms, only allow the number of persons listed in this Tenancy Agreement to reside in the Residential Premises;

(c) not use open deep fat frying or gas cooking equipment anywhere in the Location;

(d) except as provided for in the Location by the Landlord, not use baths (including bucket baths), pools and other inflatable water storage, washing and drying machines, bidets or similar, gas cooking equipment and any additional plumbing fixtures anywhere in the Location;

(e) not, without the prior written consent of the Property Management (which must not be unreasonably withheld), bring any furniture into the Residential Premises or Location;

(f) dispose of all food and other waste in the appropriate refuse containers;

(g) use the Common Areas, Shared Items and Premises Items in a responsible and careful manner and for the purpose(s) they were designed to be used;

(h) use the swimming pool provided for in the Location by the Landlord (if any) only at the times and in the manner permitted by the Property Management; and

(i) not exceed the total load capacity of the electric sockets in the Residential Premises or the Common Areas or use faulty appliances.

## 2.10 Other requirements

The Tenant agrees to:

(a) comply with the terms of the Guidelines, copies of which the Tenant acknowledges receiving on or prior to the Check-In Date;

(b) comply with all reasonable requests or instructions relating to the use and occupation of the Location which may be issued from time to time by any member of the Property Management and any officer of the emergency services in attendance;

(c) afford the due courtesy and respect to any member of the Property Management;

(d) not park any car or vehicle in any parking space in or neighbouring the Location unless such car parking space has been allocated to the Residential Premises;

(e) not allow visitors to park in a parking space in or neighbouring the Location other than in a parking space specifically allocated to visitors;

(f) not make a copy of any keys, swipe cards and/or fobs without the prior written consent of the Landlord;

(g) not do anything at the Location or using the Premises Items or Shared Items which violates any local, state or federal laws; and

(h) not tamper with or change any door or window locks in the Residential Premises or Common Areas.

### 2.11 End of Tenancy Agreement

When this Tenancy Agreement comes to an end (however that may be), the Tenant agrees to:

(a) notify the Property Manager to conduct an inspection of the Residential Premises and the Premises Items;

(b) accompany the Property Manager on an inspection of the Residential Premises and Premises Items and countersign the completed condition report upon completion of such inspection (if the Tenant fails to accompany the Property Manager on the inspection, the Property Manager will conduct the inspection in the absence of the Tenant). The Tenant is entitled to endorse the condition report with comments on its accuracy;

(c) vacate the Residential Premises and remove all of his/her belongings from the Location (including, but not limited to, any fixtures, alterations, additions or renovations installed by or on behalf of the Tenant), and leave the Residential Premises and Premises Items in the same state and condition as at the Check-In Date, fair wear and tear excepted; and

(d) give to the Property Manager all keys, swipe cards and/or fobs to the Location and the Residential Premises, including any car park stickers issued to the tenant. Subject to the Act, the Tenant must pay the Landlord a reasonable administrative /replacement charge on demand (calculated at the absolute discretion of the Landlord) for any such item not returned.

### 2.12 Keep the Property Management informed

The Tenant agrees to inform the Property Management, in writing, of:

(a) any damage to the Residential Premises, the Location, Premises Items or Shared Items as soon as it is discovered and in any event no later than 48 hours after it occurs or is identified;

(b) any change in the Tenant's status as a student;

(c) the Tenant's contact details and the Tenant's emergency contact person's details in the event of an emergency; and

(d) the Tenant's forwarding address on vacation of the Location.

## 3 LANDLORD'S OBLIGATIONS

(a) The Landlord will provide the following facilities for the Term, to the extent that they do not fall within the Tenant's obligations referred to in clause 2 in the Additional Terms:

(1) maintenance and repair of the Location;

(2) operation, inspection, servicing and repair of plant, machinery and equipment in the Location which belongs to the Landlord;

(3) provision, repair and maintenance of the Shared Items;

(4) provision of the Premises Items at the Check-In Date;

(5) periodic cleaning of and removal of rubbish from the Common Areas;

(6) provision of firefighting equipment and smoke alarms (if required by legislation) in the Common Areas and the payment of all charges in connection with its rental, installation and maintenance;

(7) an adequate supply of hot water for normal domestic use;

(8) reasonably adequate heating in the Location having regard to prevailing weather conditions; and

(9) a copy of the Guidelines, including the complaints procedure.

(b) Without prejudice to the terms and conditions of this agreement, the Landlord shall not incur any liability for any temporary failure or interruption, nor for any loss arising from such temporary failure or interruption, in the provision of any of the facilities listed in clause 3(a) in the Additional Terms which arises for reasons beyond the Landlord's control.

(c) The Landlord may, in its sole discretion, restrict access to the Common Areas for the purposes of cleaning or for any health, safety or security reasons.

# 4 ADDITIONAL MATTERS

## 4.1 Exclusive Possession

Unless the Residential Premises is a twin-share room (in which case clause 5 applies), the Tenant's right to occupy the Residential Premises is on an exclusive basis.

## 4.2 Transfer of tenancy or sub-letting by tenant

(a) For the purposes of this clause 4.1 in the Additional Terms, a **Suitable Replacement** Person is another person actively pursuing or attending a course of study who would not be vacating accommodation let or licensed from the Landlord or a related entity of the Landlord as a result of his/her move to the Residential Premises.

(b) The Tenant may transfer their rights as tenant under this Tenancy Agreement only if:

(1) a Suitable Replacement Person (found by the Tenant) has entered into a tenancy agreement (similar in form to this Tenancy Agreement) with the Landlord;

(2) the Suitable Replacement Person has provided a replacement bond to the Landlord;

(3) the Landlord gives written consent to the transfer;

(4) the Tenant has paid to the Landlord all reasonable administrative charges incurred in connection with the transfer, up to a maximum of $1,000; and

(5) the Tenant pays all rent and charges up to the commencement date of the new tenancy agreement for the Residential Premises.

(c) If no Suitable Replacement Person can be found by the Tenant, this Tenancy Agreement cannot be terminated or otherwise transferred by the Tenant except in accordance with the Act.

(d) The Tenant must not sub-let the Residential Premises.

## 4.3 Surveillance equipment

(a) The Landlord discloses and the Tenant acknowledges that closed circuit television (CCTV) cameras, data sensors, foot traffic counters and other surveillance equipment added by the Landlord from time to time (Surveillance Equipment) may be installed in or around the Common Areas and the Location, but excluding the Residential Premises.

(b) The Tenant acknowledges that the Tenant's image may be captured by the Surveillance Equipment and the Tenant consents to the use of the Surveillance Equipment in or around the Common Areas and the Location.

## 4.4 Information and communications technology

(a) The Tenant acknowledges that any information and communications technology (including but not limited to data network cabling and telephone cabling) installed at the Location belongs to the Landlord. The Tenant must:

(1) only connect to the information and communications technology with the recommended cables;

(2) not remove or alter the information and communication technology; and

(3) comply with the requirements of the Property Manager from time to time in relation to use of the information and communications technology.

(b) If the Landlord, through a third party internet service provider, provides an internet service at the Location for use by the Tenant, the Tenant must:

(1) comply with the Landlord's internet use policy (if applicable);

(2) use the internet service in a manner which does not interfere with or disrupt other residents use of the internet service;

(3) not disclose passwords or usernames to any other occupancy, visitor, neighbour or third party; and

(4) not use the internet service for any unauthorised, criminal or illegal activity.

(c) If the Landlord provides a paid television service at the Location for use by the Tenant, the Tenant must:

(1) comply with the Landlord's paid television service policy (if applicable);

(2) use the paid television service in a manner which does not interfere with or disrupt other residents use of the paid television service;

(3) not disclose passwords or usernames to any other occupancy, visitor, neighbour or third party; and

(4) not use the paid television service for any unauthorised, criminal or illegal activity.

(d) The Landlord may terminate a Tenant's access to the internet service if the Landlord has reasonable grounds to suspect misuse, inappropriate or unauthorised use of the internet service.

(e) The Landlord may, in its sole discretion and without notice to the Tenant, terminate a Tenant's access to the paid television service or remove the paid television service from the Location.

(f) If clauses 4.4(d) or 4.4(e) occur, the Tenant acknowledges that the Tenancy Agreement will continue in full force and effect and the Landlord will not be liable to the Tenant for any compensation.

## 4.5 Personal Information

(a) The Tenant acknowledges and agrees that the Landlord will handle the Tenant's Personal Information (and all third party Personal Information provided by the Tenant) in accordance with the Privacy Act and the Landlord's privacy policy (as may be updated from time to time) located at https://www.scape.com/en-au/about/privacy (Privacy Policy).

(b) If the Tenant gives the Landlord Personal Information about a third party, the Tenant warrants that it has the consent of that third party to provide their information to the Landlord, and for the Landlord to handle their Personal Information in accordance with the Tenancy Agreement and the Privacy Policy.

(c) The Tenant consents to the Landlord disclosing their Personal Information outside of Australia to the Landlord's related entities and any third party service providers, to the Tenant's nominated emergency contacts and as otherwise required or permitted by law.

## 4.6 Landlord not liable

(a) Subject to the Act, the Landlord shall have no liability to the Tenant for any loss, expense, damage or theft (howsoever arising) under or in connection with this Tenancy Agreement, or by virtue of any act or omission of the Property Management or any member thereof, except where any such loss, expense, damage or theft is caused by any negligent act or omission by the Landlord, the Property Management or the Landlord's agents;

(b) If the Landlord is found to be liable to the Tenant, the Landlord's liability to the Tenant shall be limited to any payments actually paid by the Tenant to the Landlord.

## 4.7 Release

To the fullest extent permitted by law and subject to the Act, the Tenant releases the Landlord from all claims, injury, loss or damage of any nature that the Tenant or any invitee of the Tenant might suffer or sustain:

(a) whilst in the Location;

(b) arising from or in connection with the Tenant's use of the Residential Premises, Apartment Common Areas (if applicable), the Common Areas or any of the facilities or services at the Location; or

(c) arising from or in connection with any act or omission of another resident.

## 4.8 Right of entry

(a) Subject to the Act and with prior written notice, the Tenant agrees that the Landlord has the right for itself and for anyone authorised by the Landlord (including the police) to enter the Residential Premises at all reasonable times for any purpose connected with this Tenancy Agreement or its operation.

(b) The Tenant acknowledges that the Landlord, or anyone authorised by the Landlord, has a right to access the Common Areas and the Apartment Common Areas (if applicable) at any time without notice.

## 4.9 Works

The Landlord reserves the right to carry out or to commission any maintenance, alterations or building works in the Location or on adjoining or neighbouring property and the Landlord shall not be liable for any disturbance or inconvenience caused to the Tenant by such works.

## 4.10 Agreement with other residents

The Tenant agrees that it cannot in any circumstances compel the Landlord to take action against any other resident in relation to breaches of that resident's tenancy agreement;

## 4.11 Alternative accommodation

Subject to agreement between the Landlord and Tenant, the Landlord may at any time during the Term move the Tenant to alternative accommodation provided that:

(a) the Tenant is given reasonable notice;

(b) the alternative accommodation is not materially less suitable than the Residential Premises; and

(c) the Tenant will occupy the alternative accommodation on the terms of this Tenancy Agreement so far as relevant.

## 4.12 Notice

(a) In this Tenancy Agreement, reference to notice means notice in writing.

(b) Any notice or other writing served by the Landlord is valid and effective if signed by the Landlord or the Property Management or signed by an attorney, director, company secretary, authorised officer or solicitor of the Landlord.

(c) Subject and in addition to clause 27 in the Standard Terms, the Tenant acknowledges that any notice or other writing is sufficiently served on the Tenant if served personally or if forwarded to the Tenant by email or other electronic means, courier, facsimile or post to the Residential Premises or the last address of the Tenant known to the Landlord or the Property Management.

(d) It is the Tenant’s responsibility to inform the Landlord or the Property Management in accordance with this clause 4.12 in the Additional Terms and clause 27 in the Standard Terms if any of the Tenant’s details change in respect of clause 4.12(c) in the Additional Terms.

## 4.13 Emergency

(a) The Tenant acknowledges that the Landlord and/or the Property Management may contact the Tenant's emergency contact person in the event of an emergency.

(b) The Tenant acknowledges and agrees that the Landlord and/or the Property Management may provide Personal Information concerning the Tenant's health and safety or any other information that is required in an emergency to the Tenant's emergency contact person, authorities, the Tenant's educational institution and health professionals.

## 4.14 Damage and destruction of Residential Premises

(a) In the event that the Residential Premises is damaged or destroyed so as to be unfit for occupation and use then the Landlord shall request the Tenant to indicate whether alternative accommodation is required. The Tenant shall respond to the Landlord within seven (7) working days indicating whether such alternative accommodation is required. If the Tenant requires alternative accommodation then this Tenancy Agreement shall continue in full force and effect. If the Tenant does not require alternative accommodation then this Tenancy Agreement will terminate.

(b) Notwithstanding that the Landlord may have provided alternative accommodation to the Tenant under clause 4.14(a) in the Additional Terms, the Landlord may terminate this Tenancy Agreement, including the Tenant's use of the alternative accommodation, at the end of the academic term in which the Residential Premises is damaged or destroyed as referred to in clause 4.14(a) in the Additional Terms.

## 4.15 Termination prior to Commencement Date

(a) Prior to the date that is thirty (30) days before the Start Date, the tenant may terminate this Tenancy Agreement on written notice to the Landlord.

(b) Subject to the Act, the Landlord may recover the reasonable costs incurred in reletting the Residential Premises as a result of the Tenant terminating the Tenancy Agreement under clause 4.15(a) in the Additional Terms.

## 4.16 Breach

(a) Despite any other provision in this Tenancy Agreement, if the Landlord reasonably determines that the Tenant has committed a serious breach of this Tenancy Agreement, the Landlord may give the Tenant a notice to remedy the breach or a notice to vacate, in accordance with the Act.

(b) Subject to the Act, if this Tenancy Agreement is terminated as a result of the Tenant's breach, the Tenant is liable to pay to the Landlord reasonable costs incurred by the Landlord in re-letting the Residential Premises.

## 4.17 GST

(a) Any reference in this clause to a term defined or used in the A New Tax System (Goods and Services Tax) Act 1999 (Cth) is, unless the context indicates otherwise, a reference to that term as defined or used in that Act.

(b) Unless expressly included, the consideration for any supply made under or in connection with this Tenancy Agreement does not include an amount on account of GST in respect of the supply (GST Exclusive Consideration) except as provided under this clause.

(c) To the extent that GST is payable in respect of any supply made by a party (**Supplier**) under or in connection with this Tenancy Agreement, the consideration to be provided under this Tenancy Agreement for that supply (unless it is expressly stated to include GST) is increased by an amount equal to the GST Exclusive Consideration (or its GST exclusive market value if applicable) multiplied by the rate at which GST is imposed in respect of the supply.

(d) The recipient must pay the additional amount payable under clause 4.17(c) in the Additional Terms to the Supplier at the same time as the GST Exclusive Consideration is otherwise required to be provided.

# 5 Twin-share room

Where the Residential Premises is a twin-share room, the Tenant acknowledges and agrees that:

(a) the Tenant's right to occupy that part of the Residential Premises as marked on the annexed plan is on an exclusive basis (**Exclusive Area**);

(b) the Tenant's right to occupy that part of the Residential Premises which does not include an Exclusive Area is on a non-exclusive shared basis;

(c) the Landlord may, at any time during the Term and without notice to or the consent of the Tenant, enter into a tenancy agreement with any other person to allow that person to share occupancy of the Residential Premises, except for the Exclusive Area;

(d) the Tenant must not object to or in any way hinder the Landlord entering into a tenancy agreement with another person, including the identity of that person, in accordance with clause 5(c) in the Additional Terms;

(e) the number of occupants in the Residential Premises will not exceed the number of beds in the Residential Premises;

(f) the Tenant must at all times behave in an appropriate manner as to not cause any disturbance, distress, annoyance or inconvenience to another occupier of the Residential Premises;

(g) the Tenant's Bond or Rent will not be varied or affected if any other person occupies the Residential Premises in accordance with clause 5(c) in the Additional Terms; and

(h) if any other person occupies the Residential Premises in accordance with clause 5(c) in the Additional Terms, this Tenancy Agreement will continue in full force and effect.

# 6 Multi-bed apartment

Where the Residential Premises is located within a multi-bed apartment, the Tenant acknowledges and agrees that:

(a) the Tenant's right to occupy the Residential Premises is on an exclusive basis;

(b) the Tenant's right to occupy the Apartment Common Areas is on a non-exclusive shared basis with the other tenants of the multi-bed apartment;

(c) the Landlord may, at any time during the Term grant a right of occupancy to additional residents to occupy other rooms within the apartment;

(d) if any other person is entitled to occupy the apartment in accordance with clause 6(c) in the Additional Terms:

(1) the Tenant's Bond or Rent will not be varied or affected; and

(2) this Tenancy Agreement will continue in full force and effect;

(e) the Tenant must at all times behave in an appropriate manner as to not cause any disturbance, distress, annoyance or inconvenience to another occupier of the apartment; and

(f) a reference in this Tenancy Agreement to Tenant's obligations in relation to Common Areas, includes the Apartment Common Areas.

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# Attachment 1

## Premises Items and Shared Items

**Part 1 – Premises Items**

- As per entry condition report

**Part B – Shared Items**

- All common area items located in all the Common Areas (including courtyard, gym, laundry and bike storage) and throughout building corridors and any other items issued by the Landlord or the Property Management for resident use.

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## Certificate Of Completion

Envelope Id: DB56501E5696465A90FA76D49404DDCD
Status: Completed
Subject: Please DocuSign: Residential Tenancy Agreement
Source Envelope:
Document Pages: 40
Signatures: 1
Certificate Pages: 4
Initials: 0
AutoNav: Enabled
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| In Person Signer Events | Signature | Timestamp |
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| Editor Delivery Events | Status | Timestamp |
|---|---|---|

| Agent Delivery Events | Status | Timestamp |
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| Intermediary Delivery Events | Status | Timestamp |
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| Certified Delivery Events | Status | Timestamp |
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| Carbon Copy Events | Status | Timestamp |
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| Witness Events | Signature | Timestamp |
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| Notary Events | Signature | Timestamp |
|---|---|---|

| Envelope Summary Events | Status | Timestamps |
|---|---|---|
| Envelope Sent | Hashed/Encrypted | 9/25/2023 1:23:56 PM |
| Certified Delivered | Security Checked | 9/25/2023 1:24:10 PM |
| Signing Complete | Security Checked | 9/25/2023 1:24:59 PM |
| Completed | Security Checked | 9/25/2023 1:24:59 PM |

| Payment Events | Status | Timestamps |
|---|---|---|

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